



DUCHY *of* CORNWALL

LICENCE FOR UNIVERSITY OF GLOUCESTERSHIRE, PhD FIELD RESEARCH, AT TOR ROYAL HILL, IN THE MANOR OF DARTMOOR

1. Parties

Licensor:

His Royal Highness The Prince William Prince of Wales Duke of Cornwall acting by the Upland Rural Asset Manager, Duchy of Cornwall, Tavistock Road, Princetown, Devon PL20 6QF (**Licensor**)

Licensee:

Mark Rhodes, 31 Campion Way, Willstock, Bridgwater, Somerset TA5 2EZ (**Licensee**)

2. Consideration

There shall be no licence fee due to the educational nature of the activity.

Licence Period

The licence period means the period from and including 22nd May 2026 terminating on and including 31st May 2026 (**Licence Period**).

3. Purpose

In consideration of the payment by the Licensee of the Licence Fee and the Licensee complying with the agreements and conditions on the Licensee's part set out in this Licence the Licensor permits the Licensee during the Licence Period to

use that part of the Licensor's property known as Tor Royal (the **Licence Area**) more particularly shown in the Third Schedule for the purposes of the activity set out in the Third Schedule (**Permitted Use**)

together with the benefit of the rights set out in the Second Schedule (**Rights**) but subject to all existing rights and easements affecting the Licence Area and on the following terms and conditions.

4. Obligations of the Licensee

The Licensee shall comply with the obligations set out in the First Schedule.

5. Agreements and Declarations

It is hereby agreed and declared between the parties as follows:

- (a) The Licensee shall have rights to use the Licence Area as a licensee and no relationship of landlord and tenant is created between the Licensor and the Licensee by this Licence.
- (b) The Licensor retains control, possession and management of the Licence Area and the Licensee has no right to exclude the Licensor from the Licence Area.
- (c) Nothing in this Licence shall prevent the Licensor from using the Land for:
 - (i) all usual agricultural/silvicultural purposes or other matters associated with normal estate management and/or
 - (ii) for the granting of other rights and privileges to other third parties.
- (d) The right to use the Licence Area granted by this Licence is personal to the Licensee and is not assignable and the rights given in clause 4 may only be exercised by the Licensee.
- (e) [Without prejudice to its rights under clause [9] the Licensor shall be entitled at any time on giving not less than 3 days' notice to require the Licensee to transfer to and alternative location and the Licensee shall comply with such requirement].
- (f) Nothing in this Licence shall imply or warrant that the Licence Area may be lawfully used for the Permitted Use.
- (g) The Licensee acknowledges that it does not rely on, and shall have no remedies in respect of, any representation or warranty (whether made innocently or negligently) that may have been made by or on behalf of the Licensor before the date of this Licence as to any of the matters mentioned in this clause 6.
- (h) Nothing in this clause 6 shall limit or exclude any liability for fraud.

6. Limitation of Licensor's liability

- (a) Subject to clause 7(b) the Licensor is not liable for:
 - (i) the death of, or injury to the Licensee, its employees, customers or invitees to the Licence Area; or
 - (ii) damage to any property of the Licensee or that of the Licensee's employees, customers or other invitees to the Licence Area; or
 - (iii) any losses, claims, demands, actions, proceedings, damages, costs or expenses or other liability incurred by Licensee or the Licensee's employees, customers or other invitees to the Licence Area in the exercise or purported exercise of the rights granted by this Licence.
- (b) Nothing in clause 7(a) shall limit or exclude the Licensor's liability for:
 - (i) death or personal injury or damage to property caused by negligence on the part of the Licensor or its employees or agents; or

- (ii) any matter in respect of which it would be unlawful for the Licensor to exclude or restrict liability

7. Notices

- (a) Any notice or other communication given under this Licence shall be in writing and shall be delivered by hand or sent by pre-paid first-class post or other next working day delivery service to the relevant party as follows:
 - (i) to the Licensor acting by Lisabeth Miller, Upland Rural Asset Manager, Duchy of Cornwall, Tavistock Road, Princetown, Devon PL20 6QF; and
 - (ii) to the Licensee at: Mark Rhodes, 31 Campion Way, Willstock, Bridgwater, Somerset TA5 2EZ
 - (iii) or as otherwise specified by the relevant party by notice in writing to each other party.
- (b) Any notice or other communication given in accordance with clause 5 will be deemed to have been received:
 - (i) if delivered by hand, on signature of a delivery receipt or at the time the notice or other communication is left at the proper address; or
 - (ii) if sent by pre-paid first-class post or other next working day delivery service, at 9.00 am on the working day after posting.
- (c) A notice or other communication given under this Licence shall not be validly given if sent by fax or e-mail.
- (d) This clause does not apply to the service of any proceedings or other documents in any legal action or, where applicable, any arbitration or other method of dispute resolution.

8. Termination

This Licence may be terminated in accordance with the following provisions:

- (a) If any sum payable hereunder by the Licensee to the Licensor or any part of it shall remain unpaid for 21 days after becoming due (whether formally demanded or not) or if there shall be any breach of any of the terms of this Licence on the Licensee's part then the Licensor may terminate this Licence forthwith without notice but without prejudice to the rights and remedies of any of the parties hereunder.
- (b) If this Licence is terminated in accordance with Clause 9(a) the Licensee will not be entitled to any refund of the Licence Fee or any part of it or any compensation.
- (c) The Licensor reserves the right to suspend or terminate this Licence in whole or in part with immediate effect should it be necessary in the best interests of estate management.

- (d) The licence may terminate on the intended termination date.
- (e) The licence may be terminated at any time by either party by the service of written notice which will have the effect of immediately terminating this licence

Termination of this Licence shall not affect the rights of either party in connection with any breach of any obligations under this Licence which existed at or before the date of termination.

THE FIRST SCHEDULE

Licensee's Obligations

The Licensee agrees and undertakes:

1. General Use Provisions:

- (a) to keep the Licence Area clean, tidy and clear of rubbish;
- (b) not to use the Licence Area other than for the Permitted Use;
- (c) not to make any alteration or addition to the Licence Area or erect any structures whatsoever without the prior written consent of the Licensor;
- (d) not to cut any vegetation or damage any trees on the Licence Area unless they have the written permission of the Licensor.
- (e) not to display any advertisement, signboards, nameplate, inscription, flag, banner, placard, poster, signs or notices at the Licence Area without the prior written consent of the Licensor;
- (f) not to do or permit to be done on the Licence Area anything which is illegal or which may be or become a nuisance (whether actionable or not), annoyance, inconvenience or disturbance to the Licensor or any wildlife or any owner or occupier of neighbouring property or to any member of the general public using public footpaths or permissive paths on, in or adjoining the Licence Area.;
- (g) not to cause or permit to be caused any damage to:
 - (i) the Licence Area, or any neighbouring property; or
 - (ii) any property of the owners or occupiers of the Licence Area or any neighbouring property;
- (h) not to apply for any planning permission in respect of the Licence Area;
- (i) not to do anything that will or might constitute a breach of any planning permission or any other consent licence permission certificate authorisation or approval whether of a public or private nature which shall be required by any competent authority for the Permitted Use affecting the Licence Area or which will or might violate in whole or in part any insurance effected by the Licensor in respect of the Licence Area;

- (j) to comply with all laws and with any recommendations of the relevant suppliers relating to the supply and removal of electricity, gas, water, sewage, telecommunications and data and other services and utilities to or from the Licence Area;
- (k) to observe any rules and regulations the Licensor makes and notifies to the Licensee from time to time governing the Licensee's use of the Licence Area;
- (l) to leave the Licence Area in a clean and tidy condition and to remove the Licensee's fixtures and equipment from the Licence Area at the end of the Licence Period (howsoever it determines) and to make good to the satisfaction of the Licensor all damage caused to the Licence Area and in default to pay to the Licensor on demand all expenses incurred by them in restoring the Licence Area and any adjacent or neighbouring land (whether or not owned by the Licensor) as aforesaid;
- (m) to report to the Licensor any trespass or inappropriate use of the Licence Area that becomes apparent without undue delay.

2. Licence Specific Use Provisions:

- (a) that prior to the commencement of the Licence Period the Licensee shall ensure that such risk assessments and/or other assessments as are appropriate to the Licensee's use of the Licence Area for the Permitted Use are carried out by a properly qualified and competent person and that appropriate steps are taken to mitigate any risks identified and shall supply a copy of any risk assessment to the Licensor if so requested. There is no obligation on the Licensor to comment on or approve the said Risk Assessment;
- (b) to not bring any vehicles of any kind onto the Licence Area for any purpose without the prior written consent of the Licensor;
- (c) to not smoke or light fires on the Licence Area without the prior written consent of the Licensor (and where the Licensee has the prior written consent of the Licensor to light fires the Licensee shall ensure that fires are only lit in suitable conditions and that they are not left unattended until such a time as they have been clearly extinguished and pose no threat to the Licence Area or otherwise);
- (d) if requested by the Licensor to affix notices to all gates and entrances to the Land informing the general public of the Licensee's use of the Land for the Permitted Use;
- (e) to observe all signs and notices on the Land, particularly those restricting access for safety purposes;
- (f) at its own expense to obtain all necessary consents under and comply with and provide and maintain all arrangements that are required in order to comply with the requirements of any statute or any government department local authority

other public or competent body or court of competent jurisdiction in connection with the Permitted Use and/or the Licensee's use of the Licence Area;

- (g) without prejudice to the generality of clause (f) to comply in all respects with the provisions of any statutes and any other obligations imposed by law or any bye-laws that may be applicable in respect of the Permitted Use and/or the Licensee's use of the Licence Area.

3. Insurance and Indemnity

- (a) The Licensee shall at all times maintain insurance against:
 - (i) third party liability to a minimum value of [£10m] for each and every claim (or such higher sum as the Licensor shall from time to time require); and
 - (ii) such other risks as the Licensor shall reasonably require (and notify in writing to the Licensee before the Licence Period) with an insurance office of good repute

and on demand to produce to the Licensor the policy and evidence of payment of the latest premium and should the Licensee fail to arrange or maintain such insurance the Licensor shall be at liberty to do so in the Licensee's stead in which event the costs incurred in doing so shall be a due and payable on demand as a debt by the Licensee to the Licensor.

- (b) The Licensee shall indemnify the Licensor and keep the Licensor indemnified against all losses, claims, demands, actions, proceedings, damages, costs, expenses or other liability in any way arising from:
 - (i) this Licence;
 - (ii) any breach of the Licensee's obligations contained in clause 6 (and the First Schedule); and/or
 - (iii) [the exercise of any rights given in clause 4 (and the Second Schedule);]

4. Payments

to pay:

- (a) ~~to the Licensor the Licence Fee and all VAT (if any) payable without deduction in advance on the first day of each week | month and proportionately for any period of less than a week | month the first such payment to be made on the date of this Licence;~~
- (b) to pay interest on all payments due under this Licence which are not paid within 14 days of the date such payments fall due to be paid whether formally demanded or not at the rate of 4% per year above the base lending rate of the Bank of England for the time being in force;

- (c) [to the relevant suppliers all costs in connection with the supply and removal of electricity, gas, water, sewage, telecommunications and data and other services and utilities to or from the Licence Area:
- (d) to pay any rates or taxes arising as a result of the granting of this agreement;
- (e) to pay to the Licensor the full cost of repair or replacement of any equipment or property belonging to or under the control of the Licensor which is damaged as a consequence of the rights granted.

THE SECOND SCHEDULE

The Rights

- a) Access to the Licence Area is by existing gateways off the adjoining public roads. In the absence of any public roads, access is on foot only unless agreed otherwise with the Duchy and any farm tenant in writing.
- b) Parking of vehicles must not interfere with the passage of forestry, farm or any other vehicles or obstruct or restrict the enjoyment of any adjoining public highways or rights of way.

THE THIRD SCHEDULE

Permitted Use – Detailed Description of Permitted Activity

PhD Student Mark Rhodes will be permitted to carry out research in Tor Royal as detailed in the attached Ph.D Field Research Phase One Proposal.

Research Location will be around Tor Royal - SX 61135 72795

Geo Coordinates: Lat: 50.53840, Long: -3.96099

OS Grid Reference: SX 61135 72795

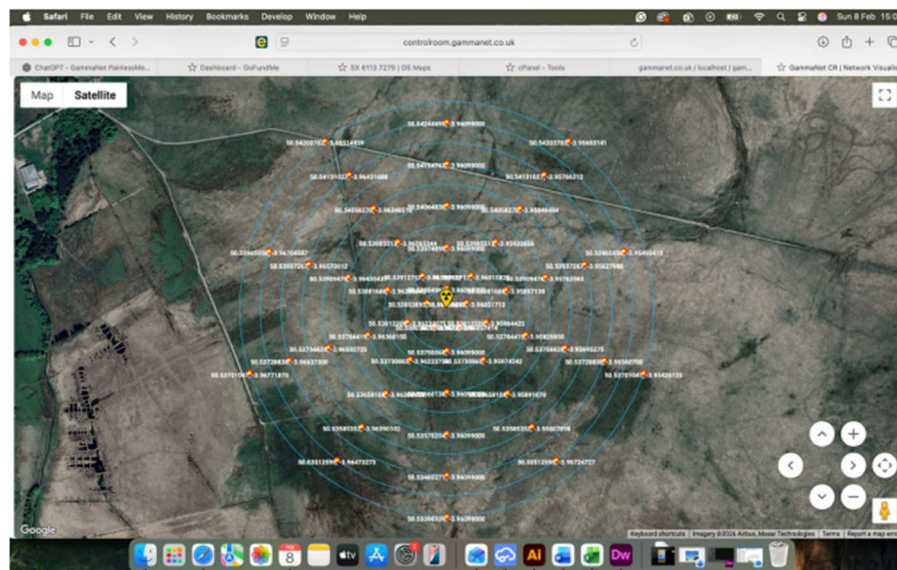


Figure 1: Research Location identified by out Blue Ring.

Executed as an agreement by the parties on the date written below.

Signed by the Licensee: 

Address: 31 Champion Way, Willstock, Bridgwater, Somerset TA5 2EZ

Signed by Lisabeth Miller 

behalf of the Duchy of Cornwall, Tavistock Road, Princetown, Devon PL20 6QF

Estates Advisory. July 2025.